

SS 2043 : Civics and Community Engagement

Week 3

THE STATE AND ITS ELEMENTS

Definitions:

The state is the most universal and most powerful of all social institutions. The state is a natural institution. Aristotle said man is a social animal and by nature he is a political being. To him, to live in the state and to be a man were identical.

The modern term 'state' is derived from the word 'status'. It was Niccolo Machiavelli (1469 - 1527) who first used the term 'state' in his writings. His important work is titled as 'Prince'.

The state is the highest form of human association. It is necessary because it comes into existence out of the basic needs of life. It continues to remain for the sake of good life.

The aims, desires and aspirations of human beings are translated into action through the state. Though the state is a necessary institution, no two writers agree on its definition.

To Woodrow Wilson, 'State is a people organized for law within a definite territory.'

Aristotle defined the state as a 'union of families and villages having for its end a perfect and self - sufficing life by which it meant a happy and honourable life'.

To Holland, the state is 'a numerous assemblage of human beings generally occupying a certain territory amongst whom the will of the majority or class is made to prevail against any of their number who oppose it.'

Burgess defines the state as 'a particular portion of mankind According to Sidgwick. 'State is a combination or association of persons in the form of government and governed and united together into a politically organized people of a definite territory.'

According to Garner, 'State is a community of people occupying a definite form of territory free of external control and possessing an organized government to which people show habitual obedience.'

Prof. Laski defines 'state as a territorial society divided into government and subjects whose relationships are determined by the exercise of supreme coercive power.'

Elements:

From the above definitions, it is clear that the following are the elements of the state :-

Physical bases of the State

1. Population
2. Territory

Political bases of the State

1. Government
2. Sovereignty

Population :

It is the people who make the state. Population is essential for the state. Greek thinkers were of the view that the population should neither be too big nor too small.

Territory :

There can be no state without a fixed territory. People need territory to live and organize themselves socially and politically. It may be remembered that the territory of the state includes land, water and air - space.

The modern states differ in their sizes. Territory is necessary for citizenship. As in the case of population, no definite size with regard to extent of area of the state can be fixed. There are small and big states.

In the words of **Prof. Elliott** 'territorial sovereignty or the Superiority of state overall within its boundaries and complete freedom from external control has been a fundamental principle of the modern state life'.

Government :

Government is the third element of the state. There can be no state without government. Government is the working agency of the state. It is the political organization of the state.

Prof. Appadorai defined government as the agency through which the will of the State is formulated, expressed and realized.

According to **C.F. Strong**, in order to make and enforce laws the state must have supreme authority. This is called the government.

Sovereignty:

The fourth essential element of the state is sovereignty.

The word 'sovereignty' means supreme and final legal authority above and beyond which no legal power exists.

The concept of 'sovereignty' was developed in conjunction with the rise of the modern state. The term Sovereignty is derived from the Latin word *superanus* which means supreme. The father of modern theory of sovereignty was Jean Bodin (1530 - 1597) a French political thinker.

Sovereignty has two aspects:

- 1) Internal sovereignty
- 2) External sovereignty

Internal sovereignty means that the State is supreme over all its citizens, and associations.

External sovereignty means that the state is independent and free from foreign or outside control.

According to Harold J. Laski, 'It is by possession of sovereignty that the state is distinguished from all other forms of human association.'

State and Society

The society consists of a large number of individuals, families, group and institutions. The early political thinkers considered both state and society as one. State is a part of society but is not a form of society.

Prof. Earnest Barker in his book entitled 'Principles of Social and Political Theory' clearly brings out the difference between state and society under three headings. They are,

1. Purpose or function
2. Organisation and structure
3. Method

From the point of view of purpose the state is a legal association, which acts for the single purpose of making and enforcing a permanent system of law and order.

But society comprising of a plurality of associations, acts for a variety of purposes other than legal.

These purposes are

1. Intellectual
2. Moral
3. Religious
4. Economic
5. Aesthetic and
6. Recreational

The membership of the state and society are the same. But they differ as regards purpose. The state exists for one great but single, purpose; society exists for a number of purposes some great and some small, but all in their aggregate deep as well as broad.

From the point of view of organization the state is a single organization - legal, whereas society comprises within itself many organizations.

As regards method as pointed out before the state employs the method of coercion or compulsion, society employs method of voluntary action.

The purposes for which society exists makes the persuasive methods necessary and the multiplicity of its organization give ample opportunity to the members to relinquish one association and join another in case coercion is ever attempted.

State and Nation:

The word 'nation' is derived from the Latin word 'natio' which means birth or race. The terms nation and state are used as synonym.

According to Leacock, a nation is a body of people united by common descent and language.

But the modern writers do not emphasize the racial aspects so much as the psychological and spiritual. It has acquired a political meaning in the recent times.

People who share common ideas and naturally linked to gather by some affinities and united are now called a nation. In the case of state feeling of oneness is not necessary as in the case of the four elements constituting the State.

State and Government:

Government is often used with the 'state' as synonym.

But both the government and the state are two different entities. There are differences between the state and the government.

State

1. State consists of population, territory, government and sovereignty.
2. State possesses original powers.
3. State is permanent and continues forever.
4. State is abstract and invisible.

Government

1. Government is part of the state.
2. Powers of the government are derived from the state.
3. Government is temporary. It may come and go.
4. Government is concrete and is visible.

Branches of Government:

1. Executive:

It is one of the three branches of government as given above.

State functions through the executive, the namely the government. It is the duty of the executive or enforce the laws passed by the legislature.

The executive who exercise real power is the real executive. The executive who has nominal power is the normal executive.

Powers and functions of executive are :

1. Enforcing law
2. Maintaining peace and order.
3. Repelling aggression.
4. Building friendly relations with other states

5. When necessary to wage war to protect the country.
6. Making appointments to higher posts.
7. Raising money and spending them.
8. Convening the sessions of the legislature and conducting business.
9. Issues ordinances whenever the legislature is to in session.
10. Implement schemes and projects to improve the social and economic conditions of the people.
11. Power to grant pardon, reprieve or remission of punishment.

2. Legislature:

The legislature is the law making branch. The legislature has an important role in the amendment of the constitution. The legislature is a deliberative body where matters of social, economic and political concerns are discussed, debated and decided.

The British parliament is said to be 'the mother of parliaments'. It is the oldest legislature in the world.

According to **Prof. Laski**, law-making is not the only function of the legislature but its real function is to watch the process of administration to safeguard the liberties of private citizens.

National Assembly as the Lower House.
Senate as the Upper House

The functions of legislature are

- a) Enact laws
- b) Oversee administration
- c) Pass the budget
- d) Hear public grievances
- e) Discuss subjects like
 - 1) Development plans
 - 2) National policies
 - 3) International relations.

3. Judiciary:

Judiciary is the third important organ of the government machinery. Its main function is to interpret laws and administer justice.

Lord Bryce has said that there is no better test of excellence of government than the efficiency of its judicial system. The welfare of citizens depends to a larger extent upon the judiciary.

Judiciary is one of the pillars of democracy. Its interpretation ensures justice, equality and liberty to all its citizens. An independent and impartial judiciary is an essential feature of a democratic setup.

According to **Justice Hughes**, 'we are under a constitution, but the constitution is what the judges say it is'.

Functions of Judiciary:

1. Administration of justice.
2. To determine what is law and what is the scope and meaning of it. Interpretation of constitution and law
3. To give advisory opinion on matters referred to it.
4. To issue order or writs for the purpose of preventing violation of rights and law
5. To act as a guardian of the constitution

